

[doc. web n. 9986278]
Provision of January 24, 2024
Register of Provisions
No. 33 of January 24, 2024

THE GUARANTOR FOR THE PROTECTION OF PERSONAL DATA

IN THE meeting today, attended by
Prof. Pasquale Stanzione, President, Prof.
Ginevra Cerrina Feroni, Vice President, Dr.
Agostino Ghiglia, and Attorney Guido Scorza, members, and
Secretary General Fabio Mattei;

HAVING REGARD to Regulation (EU) 2016/679 of the European Parliament
and of the Council of April 27, 2016, concerning
the protection of natural persons with regard to
the processing of personal data, as well as the free
movement of such data and repealing Directive
95/46/EC, "General Data Protection Regulation" (hereinafter, "Regulation");

HAVING REGARD to Legislative Decree No. 196 of June 30, 2003, containing
"Code regarding the protection of personal data,
containing provisions for the adaptation
of the national legal system to Regulation (EU)
2016/679 of the European Parliament and of the Council, of
April 27, 2016, concerning the protection of
natural persons with regard to the processing of personal data,
as well as the free movement of such data and repealing Directive 95/46/EC (hereinafter
"Code");

HAVING REGARD to Regulation No. 1/2019 concerning
internal procedures with external relevance,
aimed at carrying out the tasks and
exercising the powers assigned to the Guarantor for the
protection of personal data, approved by
Resolution No. 98 of April 4, 2019, published in
G.U. No. 106 of May 8, 2019 and on www.gpdp.it, doc.
web n. 9107633 (hereinafter "Guarantor Regulation
No. 1/2019");

HAVING REGARD to the documentation on file;

HAVING REGARD to the observations made by the Secretary
General pursuant to Article 15 of the Guarantor Regulation
No. 1/2000 on the organization and functioning of the
office of the Guarantor for the protection of personal data, doc. web n. 1098801;

Reporting by Prof. Pasquale Stanzione;

PREMISE

1. Introduction.

By provision of October 20, 2022, No. 341 (doc.
web n. 9831369), the Authority sanctioned the Municipality
of Salento (hereinafter, the "Municipality") for having, among
other things, denied a data subject the possibility of
exercising the right of access to
certain images captured by a video surveillance system, having

conditioned access to them on the payment of a substantial sum, despite the request of the data subject not being considered excessive, in violation of Articles 12 and 15 of the Regulation.

With the same provision, the Authority, pursuant to Articles 12, paragraphs 1 and 3, 15, paragraphs 1 and 3, and 58, paragraph 2, letter c), of the Regulation, also ordered the Municipality, if it had not already done so, to provide the data subject, free of charge, within thirty days from the notification of the aforementioned provision, a copy of the requested video surveillance images, also providing the Authority, within the same term, pursuant to Articles 58, paragraph 1, letter a), of the Regulation and 157 of the Code, a suitably documented response regarding the initiatives taken to implement the order, or, alternatively, within the same term, pursuant to Articles 12, paragraphs 1 and 3, 15, 58, paragraph 1, letter a), of the Regulation and 157 of the Code, informing the Authority and the data subject regarding any existence of factual or legal reasons preventing the possibility of accepting said request, providing a suitably documented response.

The Municipality, to which the aforementioned provision was notified by note of November 7, 2022 (prot. n. 0060823), however, did not provide a response to the Authority within the deadline set, that is, by December 7, 2022.

2. The investigative activity.

By note of December 16, 2022 (prot. n. 0082383), the Authority requested clarifications from the Municipality regarding the lack of response.

The following day, the legal representative of the data subject, who had previously filed a complaint against the Municipality, informed the Authority that the Entity “did not comply within the stipulated time to send [...] a copy of the video surveillance images.”

By email message of January 16, 2023, the Municipality, in response to the aforementioned note from the Authority, stated that it had “sent a communication to the company that has been entrusted with the service (which expired on 12/31/2022), to find out if it still had the contested images” and that it had not received a response.

By note of January 18, 2023 (prot. n. 0007864), the Office, based on the elements acquired, the checks carried out, and the facts emerged following the investigative activity, notified the Municipality, pursuant to Article 166, paragraph 5, of the Code, of the initiation of the procedure for the adoption of the provisions of Article 58, paragraph 2, of the Regulation, for having failed:

to provide the Authority, pursuant to Articles 58, paragraph 1, letter a), of the Regulation and 157 of the Code,

within the term of 30 (thirty) days from the date of notification of provision No. 341 dated October 20, 2022, a suitably documented response regarding the initiatives taken to implement what was ordered or the possible existence of factual or legal reasons preventing the possibility of accepting the data subject's request to obtain a copy of their personal data or the circumstance that the same had already provided a response to the request in question, thus, the Entity acted in

****Violation of Article 157 of the Code (in connection with Article 58, paragraph 1, letter a), of the Regulation); to comply, within the same term, with the prescriptions issued by the Authority pursuant to Articles 12, paragraphs 1 and 3, 15, paragraphs 1 and 3, and 58, paragraph 2, letter c), of the Regulation (i.e., "to provide the interested party, free of charge, if not already done, after verifying the existence of the conditions provided for by law, [...] a copy of the requested video surveillance images") with the aforementioned provision of October 20, 2022, having, therefore, acted in violation of an order issued by the Authority pursuant to Article 58, paragraph 2, letter c), of the Regulation.****

****With the same note, the Municipality was also invited to submit defensive writings or documents to the Guarantor or to request to be heard by the Authority (Article 166, paragraphs 6 and 7, of the Code, as well as Article 18, paragraph 1, of Law No. 689 of November 24, 1981).****

****In an email dated February 3, 2023, the Municipality stated that it was in possession of a "diskette" containing the video surveillance images in question, representing, however, "the impossibility of sending said video [to the interested party] without the authorization of the other persons involved," as they were recorded together with him.****

****In a subsequent email dated February 15, 2023, the Municipality stated that "on February 14, 2023, the requested footage was delivered to Attorney [...] on behalf of [the complainant]. The delivery was made by the Local Police at the office of the aforementioned attorney [...]" The Municipality also provided a copy of a delivery report of such footage, drawn up by the Local Police of the Municipality and signed "for receipt" by the legal representative of the interested party, dated February 14, 2023.****

****3. Outcome of the investigative activity.****

****3.1. The untimely response to the Authority's request for information.****

Pursuant to Article 58, paragraph 1, letter a), of the Regulation, the supervisory authority has the power to "order the data controller [...] to provide it with any information it needs to carry out its tasks." In the national legal system, Article 157 of the Code provides that "within the powers referred to in Article 58 of the Regulation, and for the performance of its tasks, the Guarantor may request the data controller [...] to provide information and to exhibit documents also with reference to the content of databases."

The violation of the aforementioned article is subject to "the administrative sanction referred to in Article 83, paragraph 5, of the Regulation" (Article 166, paragraph 2, of the Code), namely "up to 20,000,000 EUR."

In this case, the Municipality failed to provide the Authority, pursuant to Articles 58, paragraph 1, letter a), of the Regulation and 157 of the Code, within the 30 (thirty) days from the date of notification (November 7, 2022) of provision No. 341 dated October 20, 2022, or by December 7, 2022, with an adequately documented response regarding the initiatives undertaken to comply with what was ordered or the possible existence of factual or legal reasons preventing the acceptance of the interested party's request to obtain a copy of their personal data or the circumstance that they had already provided a response to the request in question.

As illustrated above, only following a further request for information from the Authority (see note of December 16, 2022, prot. No. 0082383) did the Municipality provide an initial insufficient response on January 16, 2023, and then fully inform the Authority regarding the actions taken to comply with the prescriptions in question on February 15, 2023, namely seventy days after the deadline set by the Authority, having, therefore, acted in violation of Article 157 of the Code (in connection with Article 58, paragraph 1, letter a), of the Regulation).

****3.2. The untimely compliance with the prescriptions issued by the Authority.****

Pursuant to Article 58, paragraph 2, letter c), of the Regulation, the Guarantor has the power to "order the data controller [...] to satisfy the requests of the interested party to exercise the rights deriving from the [...] regulation."

As provided for by Article 83, paragraph 5, letter e), of the Regulation, "the failure to comply with an order [...] of the supervisory authority pursuant to Article 58, paragraph 2 [...]" is subject to an administrative pecuniary sanction "up to 20,000,000 EUR" (see also paragraph 6 of the same article). It is noted that the Municipality, as of January 16, 2023, had limited itself to initiating preliminary discussions with its own supplier to verify the availability of the images depicting the complainant, and it is established that, as emerges from the report of the Local Police produced in the records, only on February 14, 2023, did it comply with what was prescribed by the Authority pursuant to Articles 12, paragraphs 1 and 3, 15, paragraphs 1 and 3, and 58, paragraph 2, letter c), of the Regulation (i.e., "to provide the interested party, free of charge, if not already done, after verifying the existence of the conditions provided for by law, [...] a copy of the requested video surveillance images"), with a delay of sixty-nine days from the deadline set for it (December 7, 2022), having, therefore, acted in violation of an order issued by the Authority pursuant to Article 58, paragraph 2, letter c), of the Regulation.

****4. Conclusions.****

In light of the evaluations mentioned above, it the necessary delay, it is deemed appropriate to impose a monetary administrative sanction of €8,000 (eight thousand) for the violation of Articles 58, paragraph 2, letter c), of the Regulation and 157 of the Code (in connection with Article 58, paragraph 1, letter a), of the Regulation), as an administrative monetary sanction considered, pursuant to Article 83, paragraph 1, of the Regulation, effective, proportionate, and dissuasive.

5. Adoption of the injunction order for the application of the monetary administrative sanction and accessory sanctions (Articles 58, paragraph 2, letter i, and 83 of the Regulation; Article 166, paragraph 7, of the Code).

The Guarantor, pursuant to Articles 58, paragraph 2, letter i) and 83 of the Regulation as well as Article 166 of the Code, has the power to "impose a monetary administrative sanction pursuant to Article 83, in addition to [other] corrective measures [referred to in this paragraph], or in lieu of such measures, depending on the circumstances of each individual case" and, in this context, "the Board [of the Guarantor] adopts the injunction order, which also provides for the application of the accessory administrative sanction of its publication, in whole or in part, on the Guarantor's website pursuant to Article 166, paragraph 7, of the Code" (Article 16, paragraph 1, of the Guarantor's Regulation No. 1/2019).

In this regard, taking into account Article 83, paragraph 3, of the Regulation, in this case, the violation of the cited provisions is subject to the application of the monetary administrative sanction provided for by Article 83, paragraph 5, of the Regulation.

The aforementioned monetary administrative sanction imposed, depending on the circumstances of each individual case, must be determined in amount taking into due account the elements provided for by Article 83, paragraph 2, of the Regulation.

With specific regard to the nature, severity, and duration of the violation (Article 83, paragraph 2, letter a), of the Regulation), it must be considered that, by failing to comply with the Authority's prescriptions, the Municipality has further compressed the right of access to the personal data of the data subject, reiterating the same violation already criticized in the aforementioned provision of October 20, 2022, No. 341, having the Entity satisfied the right in question, notifying the Authority, with considerable delay compared to the deadline set for it. Furthermore, the conduct of the Municipality is characterized by particular disvalue, indicating a substantial disregard by the Entity of the role, tasks, and powers of the supervisory authority in the national legal system (see Articles 55, 57, and 58 of the Regulation).

It is also noted, for the purposes of Article 83, paragraph 2, letter b), of the Regulation, that the

violation is intentional, as the Municipality intentionally failed to comply with the prescriptions imposed on it.

In light of these circumstances, it is believed that, in this case, the level of severity of the violation committed by the data controller is high (cf. European Data Protection Board, "Guidelines 04/2022 on the calculation of administrative fines under the GDPR" of May 23, 2023, point 60).

That said, taking into account, in a favorable sense for the data controller, that it is a small Entity (with fewer than five thousand inhabitants), it is believed that, for the purposes of quantifying the sanction, the following mitigating circumstances should be considered:

- there are no previous relevant violations committed by the data controller (Article 83, paragraph 2, letter e), of the Regulation);
- after the contestation of the violation, the data controller took action to put an end to it (Article 83, paragraph 2, letter f), of the Regulation).

By virtue of the aforementioned elements, assessed in their entirety, it is deemed appropriate to determine the amount of the monetary sanction at €8,000 (eight thousand) for the violation of Articles 58, paragraph 2, letter c), of the Regulation and 157 of the Code (in connection with Article 58, paragraph 1, letter a), of the Regulation), as an administrative monetary sanction considered, pursuant to Article 83, paragraph 1, of the Regulation, effective, proportionate, and dissuasive.

Taking into account that the prescriptions imposed by the Authority on the Municipality have been complied with after the necessary delay, it is deemed appropriate to impose a monetary administrative sanction of €8,000 (eight thousand) for the violation of Articles 58, paragraph 2, letter c), of the Regulation and 157 of the Code (in connection with Article 58, paragraph 1, letter a), of the Regulation), as an administrative monetary sanction considered, pursuant to Article 83, paragraph 1, of the Regulation, effective, proportionate, and dissuasive.

notable delay, it is also considered that the accessory sanction of publication on the Garante's website of this provision should apply, as provided for by art. 166, paragraph 7 of the Code and art. 16 of the Garante Regulation no. 1/2019. It is finally noted that the conditions referred to in art. 17 of Regulation no. 1/2019 are met.

ALL OF THE ABOVE CONSIDERED, THE GARANTE

pursuant to art. 57, par. 1, lett. f), of the Regulation, declares the conduct of the Municipality, described in the reasoning, unlawful, consisting of the violation of art. 58, par. 2, lett. c), of the Regulation and 157 of the Code;

ORDERS

the Municipality of Salento, with legal headquarters at Piazza Municipio, 2 - 84070 Salento (SA), C.F. 84000050652, to pay the sum of 8,000 euros (eight thousand) as an administrative pecuniary sanction for the violations indicated in the reasoning. It is represented that the offender, pursuant to art. 166, paragraph 8, of the Code, has the option to settle the dispute by payment, within 30 days, of an amount equal to half of the imposed sanction;

COMMANDS

the aforementioned Municipality, in case of failure to settle the dispute pursuant to art. 166, paragraph 8, of the Code, to pay the sum of 8,000 (eight thousand) according to the methods indicated in the annex, within 30 days from the notification of this provision, under penalty of the adoption of the consequent executive acts in accordance with art. 27 of law no. 689/1981;

DISPOSES

pursuant to art. 166, paragraph 7, of the Code, the publication of this provision on the Garante's website, considering that the conditions referred to in art. 17 of the Garante Regulation no. 1/2019 are met.

Pursuant to arts. 78 of the Regulation, 152 of the Code, and 10 of Legislative Decree no. 150/2011, it is possible to appeal against this provision before the ordinary judicial authority, under penalty of inadmissibility, within thirty days from the date of communication of the provision itself or within sixty

days if the appellant resides abroad.

Rome, January 24, 2024

THE PRESIDENT

Stanzione

THE REPORTER

Stanzione

THE SECRETARY GENERAL

Mattei